

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0000350-2024

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Fakih Browne

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CASE INFORMATION

<u>Judge Assigned:</u> Cianfrani, Deborah D.	<u>Date Filed:</u> 01/18/2024	<u>Initiation Date:</u> 01/18/2024
<u>OTN:</u> U 294262-3	<u>LOTN:</u>	<u>Originating Docket No:</u> MC-51-CR-0000015-2024
<u>Initial Issuing Authority:</u> Wendy L. Pew	<u>Final Issuing Authority:</u>	
<u>Arresting Agency:</u> Philadelphia Pd	<u>Arresting Officer:</u> Lutz, George	
<u>Complaint/Citation No.:</u> 2319079988-0000015	<u>Incident Number:</u> 2319079988	
<u>County:</u> Philadelphia	<u>Township:</u> Philadelphia City	
<u>Case Local Number Type(s)</u>	<u>Case Local Number(s)</u>	
Originating Docket Number	MC-51-CR-0000015-2024	
Originating Document Number	2319079988-0000015	
Originating Docket Number	MC-51-CR-0000016-2024	
District Control Number	2319079988	
Originating Document Number	2319079988-0000016	

STATUS INFORMATION

<u>Case Status:</u> Closed	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u> 01/01/2024
	04/29/2024	Sentenced/Penalty Imposed	
	04/29/2024	Awaiting Sentencing	
	03/06/2024	Awaiting Trial Readiness Conference	
	02/20/2024	Awaiting Scheduling Conference	
	01/24/2024	Awaiting Pre-Trial Conference	
	01/18/2024	Awaiting Filing of Information	

CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	01/31/2024	11:00 am	1104	Trial Commissioner Lisa McNevin	Scheduled
Pre-Trial Conference	02/20/2024	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Scheduling Conference	03/06/2024	9:00 am	1101	Judge Shanese I. Johnson	Scheduled
Jury Trial	04/29/2024	9:00 am	1108	Judge Deborah D. Cianfrani	Scheduled
Trial Readiness Conference	07/17/2024	9:00 am	1101	Judge Shanese I. Johnson	Scheduled
Jury Trial	07/29/2024	9:00 am	1101	Judge Shanese I. Johnson	Moved

CONFINEMENT INFORMATION

<u>Confinement</u>	<u>Confinement</u>	<u>Destination</u>	<u>Confinement</u>	<u>Still in</u>
<u>Known As Of</u>	<u>Type</u>	<u>Location</u>	<u>Reason</u>	<u>Custody</u>
08/01/2024	State Correctional Institution	SCI Coal Township		Yes

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DEFENDANT INFORMATION

Date Of Birth: 08/30/1990 City/State/Zip: Philadelphia, PA 19139

CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Defendant	Browne, Fakih

BAIL INFORMATION

Browne, Fakih					Nebbia Status: None	
<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>	
Set	01/01/2024	Monetary	Municipal Court	10.00%	\$500,000.00	
Set	01/18/2024	Monetary	Common Pleas	10.00%	\$1,000,000.00	

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
1	1	F1	18 § 2702 §§ A1	Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	12/31/2023	U 294262-3
2	2	F1	18 § 6105 §§ A1	Possession Of Firearm Prohibited	12/31/2023	U 294262-3
10	1	F1	18 § 2702 §§ A1	Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	12/31/2023	U 294262-3

DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		

Lower Court Proceeding (generic)

Preliminary Hearing	01/17/2024	Not Final
1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Held for Court	F1 18 § 2702 §§ A1
2 / Possession Of Firearm Prohibited	Held for Court	F1 18 § 6105 §§ A1
10 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Held for Court	F1 18 § 2702 §§ A1

Proceed to Court Defendant Was Not Present

Information Filed	01/25/2024	Not Final
1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Proceed to Court	F1 18 § 2702 §§ A1
2 / Possession Of Firearm Prohibited	Proceed to Court	F1 18 § 6105 §§ A1
10 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Proceed to Court	F1 18 § 2702 §§ A1

Guilty Plea - Negotiated Defendant Was Present

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DISPOSITION SENTENCING/PENALTIES

Disposition

Case Event

Sequence/Description

Sentencing Judge

Sentence/Diversion Program Type

Sentence Conditions

Disposition Date

Offense Disposition

Sentence Date

Incarceration/Diversionary Period

Final Disposition

Grade Section

Credit For Time Served

Start Date

Jury Trial

04/29/2024

Final Disposition

1 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference

Guilty Plea - Negotiated

F1

18 § 2702 §§ A1

Cianfrani, Deborah D.

04/29/2024

Confinement

Min of 5.00 Years

Max of 10.00 Years

5 - 10 years

Special probationers/parolees shall comply with any special conditions of probation/parole imposed by the Court and or the Pennsylvania Board of Probations and Parole, until such time a status hearing can be scheduled.

Credit to be calculated by the Phila. Prison System with the start date being 01/10/2023 by agreement.

To stay away from victim(s). Stay Away Order Received.

2 / Possession Of Firearm Prohibited

Guilty Plea - Negotiated

F1

18 § 6105 §§ A1

Cianfrani, Deborah D.

04/29/2024

Probation

Max of 3.00 Years

3 years

To make restitution of the fruits of his crime or to make reparation, in an amount he can afford to pay, for the loss or damage caused thereby.

Supervision Fee Waived

This probationary sentence is to run consecutive to incarceration sentence imposed.

10 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference

Guilty Plea - Negotiated

F1

18 § 2702 §§ A1

Cianfrani, Deborah D.

04/29/2024

Probation

Max of 10.00 Years

10 years

This probationary sentence is to run concurrent with incarceration sentence imposed.

LINKED SENTENCES:

Link 2

CP-51-CR-0000350-2024 - Seq. No. 2 (18 § 6105 §§ A1) - Probation is Consecutive to

- Link 1

Link 1

CP-51-CR-0000350-2024 - Seq. No. 10 (18 § 2702 §§ A1) - Probation is Concurrent with

CP-51-CR-0000350-2024 - Seq. No. 1 (18 § 2702 §§ A1) - Confinement

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COMMONWEALTH INFORMATION

Name:

Supreme Court No:

ATTORNEY INFORMATION

Name:

Defender Association of
Philadelphia
Public Defender

Supreme Court No:

Rep. Status:

Active

Phone Number(s):

Address:

ENTRIES

<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	01/18/2024		Court of Common Pleas - Philadelphia County
Held for Court			
3	01/18/2024		Pew, Wendy L.
Bail Set - Browne, Fakih			
4	01/24/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	01/25/2024		Krasner, Larry
Information Filed			
1	01/30/2024		Defender Association of Philadelphia
Omnibus Pre-Trial Motion			
3	02/20/2024		Shaffer, Zachary C.
Pre-Trial Conference Held			
1	03/06/2024		Johnson, Shanese I.
Scheduling Conference Held			
3	04/26/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	04/29/2024		Cianfrani, Deborah D.
Guilty Plea - Negotiated			

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ENTRIES

<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
2	04/29/2024		Cianfrani, Deborah D.
Order - Sentence/Penalty Imposed			
4	04/29/2024		Court of Common Pleas - Philadelphia County
Penalty Assessed			
5	04/29/2024		Court of Common Pleas - Philadelphia County Cianfrani, Deborah D.
Court Commitment State or County Correctional Institution			
6	04/29/2024		Court of Common Pleas - Philadelphia County Cianfrani, Deborah D.
Itemized Account of Fines, Costs, Fees, and Restitution			
APPD Parole Probation Intake			
04/29/2024			
Fines and Costs			
04/29/2024			
OJR Financial Adjustments			
04/29/2024			
1	07/02/2024		Philadelphia County Office of Judicial Records
Entry of Civil Judgment			
1	07/17/2024		Johnson, Shanese I.
Case Listed in Error			

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CASE FINANCIAL INFORMATION

Last Payment Date: 02/11/2025

Total of Last Payment: -\$60.00

Browne, Fakih	<u>Assessment</u>	<u>Payments</u>	<u>Adjustments</u>	<u>Non Monetary</u>	<u>Balance</u>
Defendant				<u>Payments</u>	
Costs/Fees					
ATJ	\$6.00	\$0.00	\$0.00	\$0.00	\$6.00
Booking Center Fee (Philadelphia)	\$175.00	\$0.00	\$0.00	\$0.00	\$175.00
CJES	\$2.50	\$0.00	\$0.00	\$0.00	\$2.50
CQS Fee Felony (Philadelphia)	\$100.00	\$0.00	\$0.00	\$0.00	\$100.00
Commonwealth Cost - HB627 (Act 167 of 1992)	\$25.90	\$0.00	\$0.00	\$0.00	\$25.90
Costs of Prosecution - CJEA	\$50.00	\$0.00	\$0.00	\$0.00	\$50.00
County Court Cost (Act 204 of 1976)	\$37.80	\$0.00	\$0.00	\$0.00	\$37.80
Crime Victim Services and Compensation (Act 77 of 1992)	\$60.00	(\$60.00)	\$0.00	\$0.00	\$0.00
Criminal Lab Fee (Philadelphia)	\$135.00	\$0.00	\$0.00	\$0.00	\$135.00
DNA Detection Fund (Act 185-2004)	\$250.00	\$0.00	\$0.00	\$0.00	\$250.00
Domestic Violence Compensation (Act 44 of 1988)	\$10.00	\$0.00	\$0.00	\$0.00	\$10.00
Firearm Education and Training Fund	\$5.00	\$0.00	\$0.00	\$0.00	\$5.00
JCPS	\$21.25	\$0.00	\$0.00	\$0.00	\$21.25
Judicial Computer Project	\$8.00	\$0.00	\$0.00	\$0.00	\$8.00
OAG - JCP	\$2.50	\$0.00	\$0.00	\$0.00	\$2.50
State Court Costs (Act 204 of 1976)	\$17.30	\$0.00	\$0.00	\$0.00	\$17.30
Civil Judgment/Lien (Philadelphia)	\$100.69	\$0.00	\$0.00	\$0.00	\$100.69
Costs/Fees Totals:	\$1,006.94	(\$60.00)	\$0.00	\$0.00	\$946.94
Restitution					
Individual Restitution	\$3,508.65	\$0.00	\$0.00	\$0.00	\$3,508.65
Restitution Totals:	\$3,508.65	\$0.00	\$0.00	\$0.00	\$3,508.65
Grand Totals:	\$4,515.59	(\$60.00)	\$0.00	\$0.00	\$4,455.59

** - Indicates assessment is subrogated